

25CMCV00451 25CMCV00451

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-30

Motion: PLAINTIFF'S MOTION TO VACATE THE JUDGMENT AND STAY THE WRIT OF EXECUTION DATE: July 30, 2026 TIME: 8:30 A.M.

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=COM%2CE%2C07%2F30%2F2026

Source SHA-256: 96ce47a1f22d9aadd42910b92fa0fe9d11d666d01f393ef6c240c5905fd900da

Case Number: 25CMCV00451 Hearing Date: July 30, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

GIOVANNA
WILKERSON,

Plaintiff,

vs.

PAUL UGBOGBO, DORIS
OGUNTOWO, DORES COUNCIL,

Defendants.

)

)

)

)

)

)

)

)

)

)

CASE

NO: 25CMCV00451

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION TO
VACATE THE JUDGMENT AND STAY THE WRIT OF EXECUTION

DATE: July 30, 2026

TIME: 8:30 A.M.

DEPT.:

E

Moving Party: Plaintiff

Giovanna Wilkerson

Responding Party: Defendant

Paul Ugbogbo

Notice: Ok

Tentative Ruling: Plaintiff's Motion to Vacate the Judgment and Stay the Writ
of Execution is DENIED.

I.

BACKGROUND

This is a
habitability action. Plaintiff Giovanna

Wilkerson alleges that she rented a condominium from Defendant Paul Ugbogbo ("Ugbobo"). Plaintiff alleges Defendants overcharged for rent and failed to maintain the habitability of the rental property.

On March 19, 2025, Plaintiff filed her operative Complaint against Ugbobo, Doris Oguntowo, and Doris Council, alleging several habitability issues with the property.

On June 15, 2026, Plaintiff filed the instant Motion to Vacate the Judgment and Stay the Writ of Execution.

On July 16, Defendants filed their Opposition.

As of July 29, 2026, no Reply has been filed. Pursuant to Code Civ. Proc.

§ 1005(b), all reply papers must be filed with the court and served on all other parties at least five court days before the hearing. (Code Civ. Proc. § 1005(b).) Accordingly, any reply papers now filed are untimely, and the Court exercises its discretion to refuse to consider untimely filed papers. (Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II.

ANALYSIS

A.

Legal
Standard

Pursuant to Code of Civil Procedure

§ 473(d), "[t]he court may . . . on motion of either party after notice to the other party, set aside any void judgment or order." (Code Civ. Proc. § 473(d).) Generally, Defendants have six months from entry of judgment to move to vacate. (Id., subd. (b).) But, if "the judgment is void on its face, then the six month limit set by section 473 to make other motions to vacate a judgment does not apply." (National Diversified Services, Inc. v. Bernstein (1985) 168 Cal.App.3d 410, 414.)

B.

Discussion

Plaintiff moves the Court for an order vacating the “judgment made on 3.4.26 for monetary sanctions for \$1230.00” (see Mot., p. 1:20-21) on the ground that it is void. Upon review of the docket, the Court notes that no judgment has been entered in this matter and no writ of execution has been issued but an order was made on March 4, 2026 regarding three discovery motions filed by Defendant. (See Minute Order, 3/4/26 (the “Discovery Order”).) Accordingly, the Court determines that Plaintiff’s instant motion is directed at the March 4, 2026 Discovery Order.

1.

Ugbobo’s Discovery Motions and the March 4, 2026 Hearing

On March 4, 2026, the Court heard Defendant Paul Ugbobo’s regularly noticed discovery motions, specified as follows:

(1)

Motion

to Compel Plaintiff’s Responses to Form Interrogatories, Set One, filed on January 27, 2026 (the “FROG Motion”);

(2)

Motion

to Compel Plaintiff’s Responses to Demand for Production and Inspection of Documents and Things, Set One, filed January 27, 2026 (the “RPD Motion”); and

(3)

Motion

to Deem Requests for Admission Admitted Against Plaintiff Giovanna Wilkerson (Set One), filed January 27, 2026 (the “RFA Motion”).

(See Minute Order, 3/4/26.) The FROG Motion, RPD Motion and RFA Motion are collectively referred to herein as the “Discovery Motions.”

The proof of service attached to each discovery motion indicates that each motion was served via U.S. Mail on January 27, 2026 to Plaintiff Giovanna Wilerkson at 3232 W. 43rd Place, Los Angeles, CA 90008. (See FROG Mot., p. 8; RPD Mot., p. 8; RFA Mot., p. 8.)

On February 13, 2026, the Court heard Defendant's Ex Parte Application to Advance the Hearing and to Hear Defendant's Motion to Deem Request for Admissions Admitted Against Plaintiff Giovanna Wilkerson. (See Minute Order, 2/13/26.)

The Court granted Defendants' Ex Parte and set all three of Defendant's then-pending Discovery Motions for hearing on March 4, 2026. (Id.) Defendant was ordered to, and did, give notice of the new hearing date. (Id.; See Notice of Ruling, filed 2/23/26.) Notice of the new hearing date was sent on February 18, 2026 via U.S. Mail to Plaintiff Giovanna Wilkerson at 3232 W. 43rd Place, Los Angeles, CA 90008. (Notice of Ruling, filed 2/23/26, p. 4 (with USPS Tracking Receipt at pp. 5-7).)

Plaintiff

did not oppose the Discovery Motions and the Court ultimately issued a ruling on March 4, 2026 granting the Discovery Motions and granting Defendant's request for sanctions in the reduced amount of \$1,230.00. (See Minute Order, 3/4/26, p. 5.)

2.

The Instant Motion

Plaintiff's moving papers do not set forth a coherent ground for Plaintiff's contention that the Discovery Order is "void" but alludes to an allegation that "there were court proceedings that the Plaintiff was not able to participate in" (Mot., p. 1:22-23) and that Plaintiff "did not receive the notice of hearing in a timely manner." (Id., p. 2:10-11.) The Court proceeds with the understanding that Plaintiff is seeking to set aside the Discovery Order because she alleges that she did not receive notice of the March 4, 2026 hearing.

As

is specified above, notice of the March 4, 2026 hearing was sent to Plaintiff via U.S. Mail on January 27, 2026 to her address at 3232 W. 43rd Place, Los Angeles, CA 90008 and notice of the March 4, 2026 hearing date was sent on February 18, 2026 to the same address. Both notices were sent to the same address as is listed on Plaintiff's moving papers for the instant motion. (See Mot., p. 1.) The second notice was sent with tracking, indicating that it was delivered to Plaintiff's address. (See Notice of Ruling, filed 2/23/26, p. 4 (with USPS Tracking Receipt at pp. 5-7).)

The Court finds no irregularity in service of the Discovery Motions and no irregularity in notifying Plaintiff of the date the Discovery Motions would be heard. In short, the record before the Court provides no basis for the Court to determine that there was any reason Plaintiff was not aware of the March 4, 2026 hearing date or could not attend and no basis for any determination that the Discovery Order might be “void.” Plaintiff’s averments that she “was not able to participate in” the March 4, 2026 hearing and “did not receive the notice of hearing in a timely manner,” in the face of the Court’s record and without more substance, are insufficient to warrant the relief sought.[1]

III.

CONCLUSION

Plaintiff’s Motion to Vacate the Judgment and Stay the Writ of Execution is DENIED.

[1] The Court further notes that the Code of Civil Procedure sets forth a method by which a party may seek leave of Court to withdraw or modify an admission. (See Code Civ. Proc. § 2033.300; see also *Wilcox v. Birthwhistle* (1999) 21 Cal.4th 973, 976-979 (Motion to withdraw or amend may be made even when matters were deemed admitted due to failure to respond).) Plaintiff has not made her motion pursuant to that section of the Code of Civil Procedure, however, and further has not made the requisite showing for the Court to grant relief pursuant to that section.